COLORADO

Chief Information Officer & Executive Director

Governor's Office of Information Technology

Real-time Billing Dispute Procedure

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Title	Real-time Billing Dispute Procedure
Executive Sponsor	David Edinger, Chief Information Officer & Executive Director
Issuing Authority	Governor's Office of Information Technology (OIT)
Applies to	All Colorado state agencies that use OIT common policy services and participate in the Real-time Billing (RtB) process.
Instrument Type	Procedure
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1. Purpose

To establish a standardized process for agencies to dispute Real-time Billing (RtB) charges and request changes during the billing process. This procedure outlines the Governor's Office of Information Technology (OIT) and agency responsibilities, submission and processing timelines, and the specific steps for disputing RtB charges and requesting changes to RtB invoices.

2. Applicability

This procedure applies to all Colorado state agencies that use OIT common policy services and participate in the RtB process.

3. Process

The RtB Dispute process consists of submission and resolution stages for both agency-initiated and OIT-initiated disputes. For standard disputes (those not related to lack of detail, service quality, multi-agency impacts, or division coding changes) reference the Real-time Billing Dispute Process: Agency Steps guide.

Agency-initiated Dispute Submission Process

If an agency identifies the need for a correction that may result in a dispute, the agency must take the following steps:

- Notify the assigned agency IT Director of the needed correction to determine if a dispute should be submitted.

- If a dispute should be submitted, the assigned agency Subject Matter Expert (SME) must click the “Dispute Charges” button on any of the Detailed Dashboards on the OIT RtB website to access and complete the official Dispute Form.
- The agency SME must complete the request form detailing the service(s) needing changes and providing the rationale for the correction.
- OIT Budget processes the request, notifies the appropriate service owner for review/awareness, and copies OIT_SMO@state.co.us.
- Changes to charges for closed previous fiscal years will not be corrected due to fiscal controls.

OIT-initiated Dispute Submission Process

If OIT identifies missed billable hours, the following occurs:

- OIT Financial Services and Service Owners confirm total hours and the amount that should have been billed.
- The OIT Service Management Office and Customer Office validate the data.
- The OIT Service Management Office and Customer Office review the data with the impacted Agency Customer.
- The Agency Customer must agree to and approve the adjustment prior to being billed.
- If approved, OIT Budget includes the approved adjustment in the next billing period.

Dispute Resolution Process

Dispute findings typically fall into seven categories: Resolved as requested; Resolved as requested, agency action needed; Finding different from requested; Finding different from requested, agency action needed; Finding different from requested, additional discussion needed; Unresolved, pending OSC decision; and Resolved, OSC decision.

Agreement with dispute request: If OIT's finding agrees with the agency dispute request and an adjustment is required, OIT will process the adjustment, reflected in the agency's Adjustments Dashboard and included as an adjustment to the agency's invoice in the next billing period.

Disagreement with dispute request: If OIT's finding differs from the agency dispute request, OIT will email the agency specifying any agency actions needed and any OIT actions being taken. The agency SME must respond to confirm the finding, resolve the dispute and close the request, or request a meeting for additional information. If the agency SME does not respond within 14 business days, the dispute will be closed and the finding will stand.

Additional discussion needed: If the agency requires additional discussion, the agency SME must respond within the 14-business-day period to request a meeting. OIT will schedule a meeting with the service owner and agency SME (the agency SME may invite additional staff). Based on the outcome, the agency SME must schedule additional meetings, confirm the finding and resolve the dispute, or disagree with the finding. If the agency SME disagrees, the dispute is considered unresolved and follows the Unresolved Dispute Process; OIT will update the dispute status to “unresolved” in the agency's Adjustments Dashboard.

Unresolved Dispute Process

Unresolved agency disputes follow the process required by Colorado Fiscal Rule 2-3, Payment Terms, 3.4 Disputes (this procedure does not supersede the fiscal rule):

- The agency disputing the charge and the agency providing the service shall attempt to resolve the dispute, utilizing agency Chief Executive Officers if necessary.

- If the dispute is not resolved within 60 business days, the disputing agency shall petition the State Controller to resolve the dispute within 30 business days of determining it cannot be resolved.
- If petitioned, the State Controller shall render a final and binding decision for all parties within a reasonable time frame.

OIT responsibilities following State Controller decision: OIT will follow the binding decision and, if applicable, reflect any adjustments in the next billing period; update the dispute status to "Resolved - OSC decision" and close the request; and, as appropriate, incorporate the decision into policies and procedures to prevent similar future disputes.

Agency responsibility following State Controller decision: Agencies will follow the binding decision issued by the State Controller.

Unique Disputes

Lack of detail: Raised when the agency cannot confirm that RtB charges are accurate due to a lack of detail concerning usage and benefit received from an OIT common policy service. The agency SME must work with the assigned IT Director to obtain additional information from the service owner. OIT will track all "lack of detail" disputes to prioritize service enhancements and incorporate greater detail into the RtB website dashboards.

Quality of service did not meet agency expectations: Raised when expected outcomes or work products did not meet agency expectations relative to time and effort billed. OIT will validate the disputed utilization charges; the agency SME must work with the IT Director to address issues, and the agency will pay charges due. If issues continue, the agency SME may commence a "stop work order" and not authorize future services; any unauthorized hours billed after service authorization removal must be disputed per this procedure.

Corrections with multi-agency impact: Where an agency-initiated dispute impacts OIT common policy billing of other agencies, OIT will contact the IT Director, Budget Director and Controller for the other agencies by email; create a separate dispute for each impacted agency; not prevent a submitted dispute from being resolved due to impact on other agencies; resolve the dispute with the original agency once validated and agreed; and offer each impacted agency an opportunity to provide input before finalization.

Division coding change: An agency-initiated dispute intended solely to correct the division assigned to a specific charge (assumes no other changes are needed). OIT will review the dispute and confirm with the appropriate service owner whether the charged division needs to change; if warranted, OIT will communicate needed actions to the agency SME. Financial adjustments to coding beyond costs may require a journal entry by the agency. OIT will not make adjustments for periods already billed; once completed, the adjustment is reflected in the next billing period.

4. Definitions and Descriptions

The following definitions and descriptions are for the sole purpose of the Real-time Billing Dispute policy and procedure:

- Chief Financial Officer (CFO): Executive leader in the functional area of OIT that focuses on financial services.
- Colorado Operations Resource Engine (CORE): The program used for interagency billing processes.
- Internal Transaction Initiator (ITI): The CORE document sent by OIT to the agency showing the invoiced amount due to OIT from the agency.
- Internal Transaction Agreement (ITA): Similar to the ITI document; the document the agency approves and references when paying the bill to OIT through CORE.

- Real-time Billing (RtB): The process OIT uses to charge back state agency customers on a monthly basis for actual service costs incurred.
- Subject Matter Expert (SME): An assigned agency representative responsible for working with OIT to resolve RtB disputes.
- Utilization: An agency's actual consumption of an OIT service.
- 90 Day Rule: Submission deadlines for disputed charges and requests for changes (see Section 5, Agency Deadlines table).

5. Responsibilities

OIT Levels of Review

All disputed charges and change requests submitted to OIT require the following internal OIT levels of review before approval is granted:

Disputed Charge Amount Threshold	OIT Team Processing Adjustment	OIT Team to Consult	OIT Response Timeline	Requires OIT CFO Approval
$100,001 or more	Budget Team	IT Director; Service Line Manager/Data Report Owner; CFO	14 business days	Yes
$10,001 up to $100,000	Budget Team	Service Line Manager/Data Report Owner	10 business days	No
$10,000 or less	Budget Team	Data Report Owner	10 business days	No

Responsibilities for Invoice Review and Processing

OIT Responsibilities:

- OIT sends a monthly email to IT Directors, Budget Directors, and Controllers announcing the availability of the agency's monthly data and invoice on the RtB website.
- OIT requests payment from the agency in CORE using an Internal Transfer Initiation (ITI) document with the invoice attached as a PDF.

Agency Responsibilities:

- Agencies process the invoice and assess the services utilized to confirm the charges.
- Agencies properly code the payment in CORE as an Internal Transaction Agreement (ITA) within 30 days of receipt.

Responsibilities for Dispute Charges/Request Changes

OIT Responsibilities:

- OIT maintains a dispute form on the RtB website and a status portal for agencies to submit OIT common policy billing and utilization corrections, track progress of disputes, and verify resolution.

Agency Responsibilities:

- Agencies assign specific SMEs to assess the invoice details provided for each service to ensure billed items are being consumed and utilized by the agency.

- If corrections are needed, agencies should submit those to OIT following the Agency-initiated Dispute Submission Process outlined in this document.
- Agencies are responsible for monitoring usage and reviewing updates monthly. Dispute requests for changes to closed previous fiscal years will not be corrected due to fiscal controls.

Agency Deadlines to Dispute Charges and Request Changes (90 Day Rule)

Agencies are responsible for complying with the following dispute and change request submission deadlines:

Fiscal Year Period	Submission Deadline	Important Notes
Periods 1 – 7	Within 90 days of invoice issuance	Requests submitted after the 90 day window will not be processed.
Periods 8 – 10	By June 30	Overrides the 90 day rule to meet year-end deadlines. Requests submitted after June 30 will not be processed.
Period 11	By July 7	Overrides the 90 day rule to meet year-end deadlines. Requests submitted after July 7 will not be processed.
Period 12	By July 22	Dispute and change requests will be reviewed for Period 12 charges only and will not be processed if submitted after July 22.

Responsibilities for Tracking Submitted Dispute Status

OIT Responsibilities:

OIT provides the status of submitted disputes on the RtB Website. The website provides the following information for each agency for all disputes:

- Unique dispute identification
- Number of days in queue
- Review status
- Service code and name
- Description of issue
- Bill reflecting resolved disputes
- Adjusted quantity and charge for resolved disputes

Agency Responsibilities:

- Agencies track disputes via the Billing Adjustments dashboard on the RtB Website.
- Agencies must use this tool prior to inquiring to OIT about the status of their dispute.

6. Compliance

RtB disputes and change request submissions that do not comply with this procedure and the associated Real-time Billing Dispute Policy will not be processed.

7. References

- Colorado Fiscal Rule 2-3: Payment Terms, 3.4 Disputes
- C.R.S. Section 24-37.5-103(b)

- OIT Real-time Billing Website
- Real-time Billing Dashboards
- Real-time Billing Dispute Form
- Real-time Billing Dispute Procedure
- Real-time Billing Dispute Process: Agency Steps

8. Expiration

This procedure remains in effect until superseded or rescinded by fiscal rule or OIT policy revisions.